

a *chattel* be limited to A. and his *heirs*, it will nevertheless be personal estate, and vest in the executors (*g*), for to hold the contrary would shake the first principles of law and confound the great landmarks of property. So the trust of a chattel cannot be entailed, as if it be limited to A. and the heirs of his body, with *remainder to B., the [*95] absolute interest vests in A., and the remainder to B. is a nullity (*a*). But trusts of terms attendant upon the inheritance, while they existed, were always excepted from the rule; for these, partly to protect the estate from secret incumbrances, and partly to keep the property in the right channel (*b*), were made in equity to follow, as shadows, the devolution of the freehold (*c*).

2. **Illegitimate children.**—Again, a person cannot settle property upon trust for illegitimate children *to be thereafter born*, since this tends to immorality, but the declaration of trust is void, and the beneficial interest results to the settlor (*d*). But illegitimate children born at the date of the settlement

2 Bligh, 209; *Earl of Kingston v. Lady Pierepoint*, 1 Vern. 5.

(*g*) *Duke of Norfolk's case*, 3 Ch. Ca. 9, 11; S. C. 1 Vern. 164, *per* Lord Guildford; *Hunt v. Baker*, 2 Freem. 62; *Attorney-General v. Sands*, Nels. 133.

(*a*) *Duke of Norfolk's case*, 3 Ch. Ca. 9, 11; *Hunt v. Baker*, 2 Freem. 62.

(*b*) See *Willoughby v. Willoughby*, 1 T. R. 765.

(*c*) For the law upon this subject, see *Sugd. Vend. & Purch.*

(*d*) *Medworth v. Pope*, 27 Beav. 71;

and see *Hill v. Crook*, 6 L. R. H. L. 265; *Dorin v. Dorin*, 7 L. R. H. L. 568; *In re Ayles' Trusts*, 1 Ch. D. 282; *Wilkinson v. Wilkinson*, 1 Y. & C. Ch. Ca. 657; *Pratt v. Matthew*, 22 Beav. 328; *Howarth v. Mills*, 2 L. R. Eq. 389. The case of *Occleston v. Fullalove*, 42 L. J. N. S. Ch. 514, has since been reversed, 9 L. R. Ch. App. 147; 43 L. J. N. S. Ch. 297; and the law on the subject has, by the decisions of L.J.J. James and Mellish, against the opinion of Lord Selborne, been considerably modified; see and

6 Ired. Eq. 137; *Stevens v. Ely*, 1 Dev. Eq. 493; as where it is attempted to create a trust for an alien in real estate when he is forbidden to hold it; *Neilson v. Lagow*, 12 How. 107; *Anstice v. Brown*, 6 Paige, 448; *Craig v. Leslie*, 3 Wheat. 563; *Hubbard v. Goodwin*, 3 Leigh, 492; *Philips v. Crammond*, 2 Wash. C.C. 441; *Hamersley v. Lambert*, 2 Johns. Ch. 508; *Atkins v. Kron*, 2 Ired. Eq. 423; or a negro; *Dunlop v. Harrison*, 14 Gratt. 251; *Skrine v. Walker*, 3 Rich. Eq. 262; *Graves v. Allan*, 13 B. Mon. 190; *Leiper v. Hoffman*, 26 Miss. 615; *Osterman v. Baldwin*, 6 Wall. 116; an illegitimate child, born or begotten, may be a *cestui que trust*; *Gardner v. Heyer*, 2 Paige, 11; *Collins v. Hoxie*, 9 Paige, 81; but not one yet to be begotten, as it would be against good morals; and a trust will not be enforced if the consideration is immoral or against public policy; *Battinger v. Budenbecker*, 63 Barb. 404; *Ownes v. Ownes*, 8 C. E. Green, 60; *Urket v. Coryell*, 5 Watts & S. 61.